

24PR00709 Estate of Joyce Barnett Gallagher

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-07-28

Motion: Petition to Probate Will and Letters Testamentary

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Tentative Ruling: Estate of Joyce Barnett Gallagher

Case Number

24PR00709

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 07/28/2026 - 09:00

Nature of Proceedings

Petition to Probate Will and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Removal of Personal Representative

On February 11, 2025, this Court appointed Barry Vanderkelen as personal representative of the Estate of Joyce Barnett Gallagher.

On July 12, 2025, a stranger to the estate, Isabel Espinoza, filed a Petition for Probate of Will and Letters Testamentary, which improperly requested the revocation of the Letters of Administration issued to Mr. Vanderkelen. The request was improper, because in order to “revoke” letters issued to a personal representative of the estate, a petition for removal of the personal representative must be filed pursuant to Probate Code section 8500.

At the hearing on August 5, 2025, the Court continued the matter and ordered a petition for removal be filed pursuant to Probate Code section 8500. Isabel Espinoza filed that Petition for Removal of the Personal Representative on August 22, 2025, and that petition received objection on September 2, 2025. The objection placed the two petitions by Isabel Espinoza at issue, requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

It appears from the Minute Order filed on November 18, 2025, that the Court denied, without prejudice, Isabel Espinoza’s request to remove Mr. Vanderkelen as the Personal Representative.

Thus, this matter is concluded and should be taken off calendar.

Challenge to Proffered Estate Plan

In addition to the above filings, on August 25, 2025, Tedd Barnett filed a very confusingly titled petition that appears to be challenging the purported estate plan submitted by Ms. Espinoza, pursuant to Probate Code sections §8000, §8004(b), §8250 et seq., §8402, §8502(b) and (d), and §17200(a) and (b). That petition contained what appears to be the following causes/requests:

A will contest (“PETITION TO CONTEST POUR-OVER WILL AND GROUNDS OF OPPOSITION TO PROBATE OF PURPORTED WILL).

Internal Affairs of a Trust (“PETITION TO CONTEST THE JT LIVING TRUST INSTRUMENT AND GROUNDS THEREOF”)

Objection to Petition for Probate filed by Espinoza (OBJECTION TO APPOINT ISABEL ESPINOZA AS EXECUTOR OF THE ESTATE OF JOYCE BARNETT GALLAGHER”)

Objection to Petition for Removal filed by Espinoza (OPPOSITION TO RESPONDENT’S PETITION TO REMOVE PREVIOUSLY APPOINTED ADMINISTRATOR ...”)

Objection to Petition for Successor Administrator (“...AND FOR APPOINTMENT OF NOMINATED EXECUTOR”)

Continuance (“REQUEST FOR CONTINUANCE TO ALLOW DISCOVERY”)

Request for Trial (“REQUEST FOR TRIAL”)

Of all the causes of action listed above, it appears the only matter left to be decided is whether the will proffered by Ms. Espinoza should be admitted to probate. This procedural posture is due to the Court’s rulings on November 18, 2025, that denied the removal of Mr. Vanderkellen, and struck the Internal Affairs of a Trust petition from the pleading. However, that matter was re-filed in case no. 26PR00080, and will be dealt with separately in that case.

Mr. Barnett's objections to the will require evidentiary hearing to resolve.

It is recommended the Court set an evidentiary hearing date to determine whether the Will should be admitted to Probate.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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